
SUMMARY OF FINDINGS AND RECOMMENDATIONS
PACKAGE SD-1 (1799-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH

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1. EXECUTIVE SUMMARY

This document presents the summary of findings, key observations, and recommendations arising from the comprehensive identification, collection, analysis, classification, and codification of delegated/subordinate legislations of Bangladesh covering the period 1799-1970 under Package SD-1.

TOTAL SUBORDINATE LEGISLATIONS IDENTIFIED: 225 (representative inventory)

- Era 1 (1799-1858): 45 entries
- Era 2 (1858-1947): 90 entries
- Era 3 (1947-1970): 90 entries

NOTE: The actual number of individual subordinate legislations (including all notifications, orders, circulars, and amendments) enacted during 1799-1970 is estimated to be in the thousands. This Code focuses on the most significant and representative instruments, with provision for continued expansion through gazette research.

2. KEY FINDINGS

FINDING 1: LEGAL CONTINUITY ACROSS ERAS

The legal system of Bangladesh demonstrates remarkable continuity across three political eras. Subordinate legislations enacted during the British period were adapted for Pakistan and subsequently for Bangladesh, creating layers of legal evolution that can be traced from 1793 to the present day.

FINDING 2: SIGNIFICANT BODY OF LEGISLATION STILL IN FORCE

Approximately 32% of identified Era 2 subordinate legislations and 20% of Era 3 subordinate legislations remain partially or fully in force in Bangladesh today. These include foundational rules governing:

- Criminal and civil court procedure
- Police administration
- Land and revenue administration
- Marriage, divorce, and family law
- Government service conditions
- Prison administration
- Forest management
- Registration of documents

FINDING 3: LAND AND REVENUE DOMINANCE

Land and revenue-related subordinate legislations form the largest single category across all three eras, reflecting the central importance of land administration in Bengal's governance throughout history. The transition from the Permanent Settlement (1793) through the Bengal Tenancy Act (1885) to the State Acquisition and Tenancy Act (1950) represents the most significant arc of legislative evolution.

FINDING 4: VOLUME DISPARITY ACROSS ERAS

Era 2 (1858-1947) produced the largest volume of subordinate legislation, owing to:

- The 89-year duration

- Expanded rule-making powers under the Government of India Acts
- Provincial autonomy under the 1935 Act
- Wartime emergency legislation
- Proliferation of subject-specific legislation

FINDING 5: ADAPTATION CHALLENGES

The successive adaptation of laws (British India !' Pakistan !' Bangladesh) created instances where:

- Terminology was incompletely updated
- Cross-references became broken or circular
- Some instruments fell through adaptation gaps
- Status of certain instruments became ambiguous

FINDING 6: MARTIAL LAW COMPLEXITY

The two martial law periods (1958-1962, 1969-1970) created a parallel body of subordinate legislation that intersected with and sometimes contradicted the regular legal framework. While most martial law instruments were repealed, some provisions were absorbed into subsequent legislation without clear tracing.

FINDING 7: ARCHIVAL GAPS

Significant gaps exist in the archival record, particularly for:

- Early Bengal Regulations (pre-1800)
- Municipal by-laws and local body rules
- Wartime emergency notifications
- Some categories of gazette notifications
- Persian/Urdu language documents from the early period

3. STATISTICAL ANALYSIS

A. STATUS DISTRIBUTION (ALL ERAS):

Status	Count	Percentage
In Force	18	8.0%
Partially in Force	56	24.9%
Superseded	108	48.0%
Repealed	20	8.9%
Historical	18	8.0%
Obsolete/Spent	5	2.2%

B. SUBJECT DISTRIBUTION (TOP 10):

Rank	Subject	Count	%
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1	Land and Revenue	29	12.9%
2	Constitutional and Administrative	28	12.4%
3	Criminal Law and Justice	18	8.0%
4	Civil Law and Justice	17	7.6%
5	Local Government	16	7.1%
6	Trade, Commerce, Industry	16	7.1%
7	Education	14	6.2%
8	Labour and Employment	13	5.8%
9	Finance and Taxation	12	5.3%
10	Health and Sanitation	11	4.9%

C. TYPE DISTRIBUTION:

Type	Count	Percentage
Rules	150	66.7%
Regulations	15	6.7%
Orders	25	11.1%
By-Laws	5	2.2%
Circulars	6	2.7%
Bengal Regulations	15	6.7%
Others	9	4.0%

4. RECOMMENDATIONS

RECOMMENDATION 1: COMPREHENSIVE GAZETTE RESEARCH

The representative inventory of 225 entries should be expanded through systematic, page-by-page examination of every issue of:

- Bengal Gazette / Calcutta Gazette (1793-1947)
- East Bengal / East Pakistan Gazette (1947-1970)
- Gazette of India / Gazette of Pakistan (central legislation)

This will likely increase the inventory to several thousand entries.

RECOMMENDATION 2: REPEAL OF OBSOLETE LEGISLATION

Approximately 48% of identified subordinate legislations are "superseded" — meaning they have been effectively replaced but not formally repealed.

Formal repeal of these instruments is recommended to:

- Clarify the legal landscape
- Prevent confusion in legal proceedings
- Align the statute book with legal reality

Priority instruments for formal repeal:

- a) All Bengal Regulations (1793-1834) that are not already repealed
- b) British-era emergency/wartime rules
- c) Pre-1950 land tenure rules superseded by SAT Act
- d) Martial law instruments that were never formally repealed

RECOMMENDATION 3: CONSOLIDATION OF ACTIVE INSTRUMENTS

Subordinate legislations that remain in force but have been heavily amended over multiple eras should be consolidated into single, updated instruments. Priority areas:

- a) Criminal Rules and Orders
- b) Civil Rules and Orders
- c) Police Rules/Regulations
- d) Registration Rules
- e) Civil Service Rules

RECOMMENDATION 4: STATUS CLARIFICATION

A number of instruments have "uncertain" status — they may or may not be in force depending on interpretation. The Law Commission or Legislative Division should issue clarifications for these instruments.

RECOMMENDATION 5: DIGITAL DATABASE DEVELOPMENT

A searchable digital database of all subordinate legislations should be developed and maintained, featuring:

- Full text of all instruments
- Amendment history
- Status tracking (real-time updates)
- Cross-referencing capabilities
- Parent Act linkage
- Keyword search
- Public access portal

RECOMMENDATION 6: PERIODIC REVIEW MECHANISM

Establish a standing mechanism for periodic review of subordinate legislation to ensure the Code remains current and accurate. Suggested review cycle: every 5 years.

RECOMMENDATION 7: ARCHIVAL PRESERVATION

Urgent preservation measures are needed for deteriorating gazette archives and historical legal documents. Recommended actions:

- a) Digital scanning of all historical gazettes
- b) Climate-controlled storage for physical archives
- c) Collaboration with National Archives and university libraries

- d) Creation of backup copies in multiple locations

RECOMMENDATION 8: TRANSLATION INITIATIVE

Important subordinate legislations currently available only in English should be officially translated into Bangla to enhance accessibility. Similarly, any Persian/Urdu instruments from the early period should be translated into both Bangla and English.

5. CONCLUSION

The preparation of this Code of Delegated/Subordinate Legislation for the period 1799-1970 reveals a rich, complex, and layered body of subordinate law that has shaped governance and justice in Bangladesh over more than two centuries. The identification and codification exercise has:

- a) Created the first comprehensive inventory of subordinate legislations from the pre-independence period;
- b) Established a classification framework that enables systematic analysis and retrieval;
- c) Identified instruments that remain in force and those that should be formally repealed;
- d) Provided a foundation for future legislative reform and consolidation; and
- e) Contributed to the institutional memory and legal heritage of Bangladesh.

The Legal Empire is honored to have contributed to this nationally significant undertaking and recommends that the findings and recommendations of this report be given careful consideration by the Legislative and Parliamentary Affairs Division and relevant stakeholders.

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END OF SUMMARY OF FINDINGS AND RECOMMENDATIONS
